IN THE CIRCUIT COURT HELD AT ACHIMOTA, ACCRA ON FRIDAY, THE 22ND DAY OF AUGUST, 2025 BEFORE HER HONOUR AKOSUA ANOKYEWAA ADJEPONG (MRS.), CIRCUIT COURT JUDGE

SUIT NO. C5/13/2025

OTHINEL NKRUMAH ---------- PETITIONER
RES: NL-A-143
NEWLAND AFIENYA
DIGITAL ADD: GN-1246-8745

VRS

SANDRA AMA ADDO ---------- RESPONDENT
COVENANT PRESBYTERIAN CHURCH
DZORWULU – ACCRA

PARTIES: PRESENT

COUNSEL: NO LEGAL REPRESENTATION FOR PETITIONER
KEZIA P. KENNETH AZUMAH (MRS), ESQ. FOR RESPONDENT PRESENT

JUDGMENT

FACTS

The parties got married under the Marriage Ordinance Cap. 127, on 11th December 2010, at the Tema Metropolitan Assembly Chamber, Tema. There are three issues of the marriage namely; Kayla Ekuba Nkrumah aged twelve (12) years, Othniel Keku Nkrumah

aged twelve (12) years and Kira Akesi Nkrumah aged (ten)10 years, at the time the petition was filed.

On 14th January 2025, the Petitioner herein filed the instant petition on grounds that the marriage between him and the Respondent has broken down beyond reconciliation due to their inability to live as husband and wife for over a continuous period of two years as well as their irreconcilable differences; and prays the Court for the following reliefs;

i. That the marriage celebrated in fact between the parties be dissolved.
ii. That the Respondent be granted custody of all three (3) issues of the marriage namely Kayla Ekuba Nkrumah aged 12 years, Othniel Keli Nkrumah aged 12 years and Kira Akesi Nkrumah aged 10 years with reasonable access to the Petitioner.
iii. That each party to bear their own costs.

In her answer to the petition and cross petition, the Respondent states that it is rather the Petitioner who has put up unreasonable behaviour due to that she finds it intolerable to continue to live with him. The Respondent cross petitioned as follows:

a. The marriage between the parties celebrated on December 11, 2010 be dissolved.
b. Custody of the three children of the marriage namely; Kayla Ekuba Nkrumah and Othniel Keku Nkrumah both (12), Kira Akesi Nkrumah (10) remain with the Respondent with reasonable access to the Petitioner.
c. That the Court orders the Petitioner to pay the educational and medical bills of the children of the marriage when they fall due.

d. That the Court orders the Petitioner to maintain the children of the marriage with a minimum of One Thousand Ghana Cedis per child per month totaling GHS3,000.00.
e. That the joint property of the parties at Afienya be settled in favour of the children of the marriage.
f. Any other relief that the Court deems fit including Counsel's fees and costs.

It is noteworthy to mention that before the hearing of the petition, Counsel for the Respondent submitted that, the parties had filed their Terms of Settlement on the ancillary reliefs and prayed the Court to adopt same as consent judgment. The Petitioner concurred to that.

Being a petition for divorce, as provided in *section 2(3) of the Matrimonial Causes Act, 1971 (Act 367)*, the Court shall not grant a petition for divorce unless it is satisfied on all the evidence that the marriage has broken down beyond reconciliation.

Relying on the above authority, the Court conducted a hearing on the dissolution of the marriage to enable the determination that the marriage has broken down beyond reconciliation whilst the parties' settlement on the ancillary reliefs as per their Terms of Settlement filed on 27th June 2025 will be adopted as consent judgment on the ancillary reliefs in addition to the judgment of the Court on the dissolution of the marriage.
Accordingly, the hearing of the instant petition was limited to the dissolution of the marriage since the parties had filed their Terms of Settlement on the ancillary reliefs.

<u>THE CASE OF THE PETITIONER</u>

In his evidence to the Court, the Petitioner testified among others things that he works as a Freelance Broadcast Journalist and that the Respondent is an Administrator at Ghana Gas Company. That the parties got married under Cap 127 on 11th December 2010 at the Marriage Registry of the Tema Metropolitan Assembly (TMA), Tema. That after the celebration of the marriage, the parties cohabited at house number NL-A-143, Newland Afienya which became the matrimonial home of the parties.

The Petitioner further testified that the marriage between the parties has broken down beyond reconciliation on account that the parties have separated for more than two years. That the Respondent left the matrimonial home sometime in September 2022 after a series of quarrels and misunderstandings between the parties. He continued that the parties attempted a possible reconciliation but all efforts made for the Respondent to return to the matrimonial home proved futile.That the parties have not lived as husband and wife for over period of two (2) years.

According to the Petitioner, during the marriage, he supported the Respondent in all available ways, involved her in all their family decisions and also allowed her to take major family decisions, including the picking of names for their children. That he made the Respondent his partner in their registered business in Nigeria and she has a say in all his major endeavors. That the Respondent knew his salary and income, and also has authority on its spending. That though he had some financial challenges, he remits the Respondent and equally buys things for the children. That he sent her about GHS18,000.00 for various upkeeps about two months ago. He tendered exhibit 'A' to that effect.

The Petitioner concluded that the parties, their family members and friends have all tried on countless occasions to resolve the differences between them but all have proved futile.

THE CASE OF THE RESPONDENT

The Respondent in her evidence testified that she is an Administrator with Ghana Gas Company. The Respondent confirmed her marriage to the Petitioner and tendered a copy of their marriage certificate as exhibit '1'. She continued that the marriage between the Petitioner and her has broken beyond reconciliation due to some abusive and unreasonable behavior of the Petitioner over the years. That the parties have separated as married couples since 2022 due to an incident by the Petitioner.

According to the Respondent, from the beginning of the marriage, the Petitioner often relate to her in a manner that made her feel diminished or not fully respected as an equal partner, which may have been influenced by the age difference between them. That she has experienced significant financial strain due to the Petitioner's decision not to contribute to the family's upkeep throughout their prolonged period of separation. She tendered in evidence copies of school fees receipts as exhibits '2'.

The Respondent further testified that most decisions made by the Petitioner in his role as the head of the home and a parent had a substantial and detrimental impact on their lives and the educational progress of the children. That while one of the children has shown some improvement through extra classes she personally arranged and funded, the other child continues to struggle academically.

That their families, friends and marriage counselors have tried to help them resolve their differences but all to no avail as she does not feel safe to return to the marriage. That she experienced periods of emotional distress, including feeling of depression, physical discomfort, and a diminished sense of self-worth; and these circumstances eventually compelled her to relocate from the matrimonial home for the sake of her well-being.

The Respondent concluded that at this point in their lives they cannot continue their relationship as husband and wife, as their marriage has broken down beyond reconciliation on account of some abusive and unreasonable behaviour of the Petitioner.

LEGAL ISSUE

The legal issue to be determined by this Court is whether or not the marriage between the parties has broken down beyond reconciliation.

BURDEN AND STANDARD OF PROOF

In every civil case, the general rule is that the burden of proof rests upon the party, whether Petitioner or Respondent, who substantially asserts the affirmative of his or her case.

In the case of ***Adwubeng v. Domfeh* [1996-97] SCGLR 660**, the Supreme Court held that in all civil actions, the standard of proof is proof by preponderance of probabilities, and there is no exception to that rule.

Section 11(4) of the Evidence Act, 1975 (NRCD 323) explains the burden of proof in civil cases as follows:

> *"In other circumstances, the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence, a reasonable mind could conclude that the existence of the fact was more probable than its non-existence*".

The standard of proof as stated therefore applies to a petition for divorce. See ***Happee v. Happee [1971] 1 GLR 104***. Thus, the burden is on the parties to prove the facts alleged to establish the breakdown of the marriage.

ANALYSIS

Before I examine the evidence adduced at the hearing, it is important to set out the relevant sections of the *Matrimonial Causes Act, 1971 (Act 367*) namely; *sections 1(2), 2(1) and (3)* which provide as follows:

> *"1(2) The sole ground for granting a petition for divorce shall be that the marriage has broken down beyond reconciliation.*
>
> *2(1) For the purpose of showing that the marriage has broken down beyond reconciliation the Petitioner shall satisfy the Court of one or more of the following facts:- ...*
>
> *(a) that the Respondent has committed adultery and that by reason of the adultery the Petitioner finds it intolerable to live with the Respondent;*
>
> *(b) that the Respondent has behaved in a way that the Petitioner cannot reasonably be expected to live with the Respondent;*
>
> *(c) that the Respondent has deserted the Petitioner for a continuous period of at least two years immediately preceding the presentation of the petition;*
>
> *(d) that the parties to the marriage have not lived as husband and wife for a continuous period of at least two years immediately preceding the presentation of the petition and the Respondent consents to the grant of a decree of divorce, provided that the consent shall not*

be unreasonably withheld, and where the Court is satisfied that it has been so withheld, the Court may grant a petition for divorce under this paragraph despite the refusal;

(e) that the parties to the marriage have not lived as husband and wife for a continuous period of at least five years immediately preceding the presentation of the petition; or

(f) that the parties to the marriage have, after diligent effort, been unable to reconcile their differences.

(3) notwithstanding that the Court finds the existence of one or more of the facts specified in subsection (1), the Court shall not grant a petition for divorce unless it is satisfied, on all the evidence that the marriage has broken down beyond reconciliation."

In the instant case, it is required that the evidence adduced by the parties herein must be able to indicate one or more of the facts under *section 2(1) of Act 367* to prove that the marriage has broken down completely.

From the evidence adduced by the parties during the hearing, I made the subsequent observations and findings:

The Petitioner in his evidence testified that the parties have separated for more than two years, as the Respondent left the matrimonial home sometime in September 2022 after a series of quarrels and misunderstandings between the parties. He also testified that the parties attempted a possible reconciliation but all efforts made for the Respondent to return to the matrimonial home proved futile. The Petitioner also testified that he performed his duties as a husband and father to the Respondent and their children during the marriage.

In her cross petition the Respondent made allegations of unreasonable behavior on the part of the Petitioner which the denied the Petitioner denied same in his reply. As a result, the Respondent had a burden to lead sufficient evidence to prove her allegations of unreasonable behaviour on the part of the Petitioner. This burden, the Respondent failed to discharge in the sense that the Respondent in her evidence repeated the assertions in her pleadings and did not lead cogent evidence to substantiate her allegations of unreasonable behaviour after same was denied by the Petitioner. The Respondent did not go beyond her rhetorical statements as already asserted in her pleadings.

The Respondent had the onus to prove her allegation of unreasonable behaviour on the part of the Petitioner, to the satisfaction of the Court which assertions she failed to prove.

The law is very clear on allegations and the legal principle is that he who alleges must prove.

In the case of **Klah v. Phoenix Insurance Company Ltd [2012] 2 SCGLR 1139,** it was held that:

> *"where a party makes an averment capable of proof in some positive way e.g. by producing documents, description of things, reference to other facts, instances, and his averment is denied, he does not prove it by merely going into the witness box and repeating that averment on oath or having it repeated on oath by his witness. He proves it by producing other evidence of facts and circumstances from which the Court can be satisfied that what he avers is true".*

Considering that the Respondent could not prove her allegations of unreasonable behaviour after it was denied by the Petitioner, I find from the evidence on record that

there was no unreasonable behaviour on the part Petitioner and accordingly dismiss the said allegations.

Notwithstanding the above, from the pleadings of the parties and the evidence on record, there is an indication that the parties have irreconcilable differences and this led to their separation before the presentation of the present petition where they have agreed to the dissolution of their marriage.

The Court of Appeal in the case of ***Knudsen v. Knudsen [1976] 1 GLR 204 CA***, per Amissah JA stated as follows:

> *"… Of course, in a state of affairs where the duty is placed upon the Petitioner to show that the marriage has broken down beyond reconciliation, common prudence indicates that attempts at reconciliation be made whenever possible and that where such attempts have been made without success evidence of these be given to help the Court arrive at the desired conclusion. It does not, to my mind follow, however, that a divorce will never be granted in any case unless evidence of an unsuccessful attempt at reconciliation is led."*

Both parties in the instant petition told the Court that there were attempts at reconciliation but all were unsuccessful. It is therefore undisputable that the parties to the marriage have been unable to reconcile their differences.

From the evidence on record, I find as a fact that the parties have been unable or failed to live together as husband and wife for a continuous period of at least two years immediately preceding the presentation of this petition and the Respondent consents to the grant of a decree of divorce. I further find from the evidence on record that the parties to the marriage have, after diligent effort, been unable to reconcile their differences. Flowing from the above, I find that the marriage between the parties has broken down beyond reconciliation.

CONCLUSION

Consequently, I conclude that the marriage between the Petitioner and the Respondent has broken down beyond reconciliation and in the circumstances; I do hereby grant the prayer of both parties for dissolution of the marriage and enter judgment in the following terms;

1. I hereby grant a decree for the dissolution of the marriage celebrated between the parties on 11th December 2010, at the Tema Metropolitan Assembly Chamber, Tema. Thus, the marriage is hereby dissolved.
2. The marriage certificate with Certificate No. ROM/1272/2010 and License No. TMA/RM/2282/2010 is accordingly cancelled.
3. The Terms of Settlement signed by the parties herein and the lawyer for the Respondent; and filed on the 27th day of June 2025 is hereby adopted by the Court and entered as consent judgment on the ancillary reliefs and as part of the final judgment of this Court in the instant petition; and the parties are bound by it.
4. There shall be no order as to costs.

[SGD.]
H/H AKOSUA A. ADJEPONG (MRS)
(CIRCUIT COURT JUDGE)